
Appeal Decision

Site visit made on 11 August 2026

by **R Gee BA (Hons) Dip TP PGCert UD MRTPI**

an Inspector appointed by the Secretary of State

Decision date: 20 August 2026

Appeal Ref: 6010542

Northolm Farm, Crowland Road, Eye Green, Peterborough PE6 7TT

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant planning permission.
 - The appeal is made by Mr David Ellis against the decision of Peterborough City Council.
 - The application Ref is 25/01330/FUL.
 - The development proposed is Change of use of Agricultural Barn to B2/B8 use.
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Decision

1. The appeal is dismissed.

Preliminary Matters

2. The Appellant's submission includes plans that would amend the red-line boundary to provide an extended hardstanding. The Procedural Guide for Planning Appeals is clear that the appeal process should not be used to evolve a scheme, and it is important that what is considered is essentially what was considered by the Council, and on which interested people's views were sought. Under the principles established by the Courts in *Holborn Studios Ltd*¹ to consider such a modification would be a substantive difference and procedurally could prejudice interested parties by depriving those who should have been consulted on the change the opportunity of such consultation. For this reason, I have determined the appeal on the basis of the plans that were before the Council when it made its decision.
3. A new National Planning Policy Framework (the Framework) was published on 17 August 2026. This has introduced significant changes to its structure and presentation, including the incorporation of development management policies. However, having carefully considered the revised Framework, I am satisfied that, insofar as the issues determinative of this case are concerned, the relevant policy approach has not fundamentally changed, and my consideration of it would not cause procedural unfairness or prejudice to parties. Therefore, the parties have not been invited to make further comments.

Main Issue

4. The main issue is the effect of the proposal on highway safety.

Reasons

5. The appeal property is an agricultural building in the countryside, accessed via an established vehicular access from Crowland Road that serves the existing farm

¹ *Holborn Studios Ltd v The Council of the London Borough of Hackney* [2017] EWCH 2823 (Admin)

complex. In the immediate vicinity of the appeal site, it is predominantly rural in character, with agricultural land and dispersed development.

6. Permission is sought for the change of use of the existing barn from agricultural use to a mixed B2/B8 use. It is understood that the barn would be used for the storage of parts, materials and plant associated with a mobile agricultural repair business, with the substantive repair works carried out off-site, at the location of the plant being repaired. Accordingly, the Appellant states that the building would provide for storage and act as a dispatch base.
7. Amongst other things, Policy LP13 of the Peterborough Local Plan 2019 (LP) requires that appropriate provision is made for safe access for all user groups, subject to appropriate mitigation.
8. Whilst the Council is satisfied that gates would be set back into the site, allowing a vehicle to stand clear of the public highway, and that appropriate visibility splays would be provided at the junction with Crowland Road concerns have been raised that it has not been demonstrated that two vehicles could pass safely within the access arrangement due to the sharp bend in the track at this point, in particular where one of those vehicles is large.
9. Whilst the Appellant indicates that a new hardstanding could be provided proximate to the junction with Crowland Road, the revised plan shows this in an area of land that was not previously identified as red or blue land on the original Location Plan². Accordingly, the submitted location plan fails to identify all land necessary to facilitate the proposal.
10. The Planning Practice Guidance stipulates that: *“The application site should be edged clearly with a red line on the location plan. It should include all land necessary to carry out the proposed development (e.g. land required for access to the site from a public highway, visibility splays, landscaping, car parking and open areas around buildings)”*³.
11. I am mindful that in the interests of highway safety, the proposal would need this additional land to facilitate two-way traffic proximate to the junction with the public highway. In the absence of this, there is a potential for vehicles to have to reverse or wait onto the public highway.
12. Whilst the Appellant suggests that the matter could be addressed through the use of a planning condition, I have not been provided with persuasive evidence that the necessary land is within the Appellant's control or that the required works could be delivered with a reasonable degree of certainty. In these circumstances, a Grampian-style condition would not overcome my concerns. I therefore cannot be satisfied that the proposal would have an appropriate access.
13. The Appellant contends that the proposed change of use would not result in a material increase in vehicular movements when compared with the existing historic lawful use of the site. Furthermore, they submit that traffic associated with the proposal would predominantly comprise cars and light goods vehicles⁴.

² PL01A.

³ Paragraph: 024 Reference ID: 14-024-20140306

⁴ The Transport and Access Statement

14. Precise details of vehicle movements associated with the existing agricultural use of the appeal building have not been provided. However, the lawful use of the building is not in dispute between the parties, and it is reasonable to expect a degree of vehicular activity associated with that use. Nevertheless, the absence of robust evidence regarding the likely frequency, scale and nature of vehicle movements associated with the proposed use adds further uncertainty to the assessment of the proposal's highway impacts and it would be difficult to enforce that no HGV's entered the site.
15. It is not disputed that a Fire Engine has been able to access the site. However, photographic evidence to this end does not demonstrate that two-way HGV's could be accommodated and accordingly, this does not address my concerns regarding the ability of larger vehicles to pass safely near the site entrance or the implications for vehicles waiting or manoeuvring in proximity to the public highway.
16. Whilst locational sustainability attracts moderate weight in favour of the proposal, given the nature of the proposed use, vehicular movements would form an integral part of the business operation, and this matter does not outweigh the unresolved highway safety concerns arising from the proposed access arrangements.
17. The Framework states that development should only be prevented or refused on highway grounds if there would be an unacceptable impact on highway safety or the residual cumulative impacts on the road network would be severe. For the reasons stated, I cannot be satisfied that the type of traffic generated by the proposal could be safely accommodated without having a detrimental impact on the free flow of traffic, or the safety of other highway users, on Crowland Road. This draws the proposal into conflict with Policy LP13 of the LP and criterion 4 of TR6⁵ of the Framework.

Other Matters

18. The site is in proximate to the Grade II* listed building known as Northolme Farm (formerly listed as Northole House). From the information before me, the special interest and significance of this asset primarily stem from its historic and architectural interests, including its Elizabethan origins as a historic farm complex. The surrounding fenland agricultural landscape contributes to its setting and illustrate the site's evolution.
19. The appeal site comprises a single steel-framed agricultural barn with profiled metal cladding and a pitched roof. The evidence indicates that the barn is likely to postdate 1948 and therefore is not considered to be a curtilage listed structure. Given the limited nature of the proposed works and the minor extent of external alterations, the development would not give rise to any harm to the significance or setting of the principal listed building or any curtilage-listed structures.
20. Given the location and extent of the development in relation to the listed building, I consider that the setting of this designated heritage asset is preserved and the contribution it makes to the asset's significance is not harmed. This meets the requirements of section 66(1) of the Planning (Listed Buildings and Conservation Areas) Act 1990 and the provisions in the Framework regarding the conservation and enhancement of the historic environment. I note the Council raised no concerns in this respect either.

⁵ Assessing Transport Impacts of Part 15: Promoting Sustainable Transport

Planning Balance and Conclusion

21. Policy S3⁶ of the Framework states that decisions on development proposals should apply a presumption in favour of sustainable development. This means for development outside settlements, policy S5 should be applied.
22. Policy S5⁷ of the Framework states that only certain forms of development should be approved outside settlements, as set out in a) -j). These should be approved, unless the benefits of doing so would be substantially outweighed by any adverse effects, when assessed against the national decision-making policies in the Framework.
23. The proposal would re-use an existing building of permanent and substantial construction. The principle of the use of the building is not in dispute between the parties, and I have no reason to conclude otherwise. Whilst limited information is before me in respect of the business the proposal would result in some economic benefits through employment and farm diversification.
24. No harm has been identified in respect of character and appearance, amenity, ecology, drainage or heritage. However, these are neutral matters that weigh neither for, nor against, the proposal.
25. Set against this is that it has not been demonstrated that the proposal would not cause an unacceptable impact to highway safety. The evidence before me does not satisfactorily demonstrate that vehicles associated with the proposed use, including larger vehicles that could reasonably be expected to visit the site, could safely access and egress the site without prejudice to highway safety. Nor does it demonstrate that suitable mitigation could be secured with sufficient certainty.
26. I am, therefore, not satisfied that the benefits of approving the development proposal would be substantially outweighed by adverse effects. The appeal is therefore dismissed.

R. Gee

INSPECTOR

⁶ Presumption in favour of sustainable development

⁷ Principle of development outside settlements